

Given the mandatory nature of the appraisal set forth in section 874.316, subd. (a), the Court finds Plaintiff's reasonable costs and fees incurred in bringing this Motion are costs of partition under section 874.010, subdivision (a). The Court defers final determination of said fees and costs until the apportionment phase. For this reason, Plaintiff's request regarding costs of partition is GRANTED.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Charleen Wignall – Ewing v. Uegene Armstead et al

23CV000124

[1] OSC re: COURT'S MOTION TO DISMISS

TENTATIVE RULING: The Court orders the action against Gene Armstead DISMISSED WITHOUT PREJUDICE for lack of prosecution. Respondent Gene Armstead is directed to lodge, with the Court, a [Proposed] Order After Hearing consistent with the instant ruling. The Court sets the matter for a Status of Dismissal hearing on September 4, 2026, at 8:30 a.m. in Dept. B.

“The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion . . . if to do so appears to the court appropriate under the circumstances of the case.” (Code Civ. Proc., § 583.410, subd. (a).) The Court may dismiss an action where “[s]ervice is not made within two years after the action is commenced against the defendant” and/or [t]he action is not brought to trial within . . . [t]hree years after the action is commenced against the defendant . . .” (Code Civ. Proc., § 583.420, subs. (a)(1) and (2)(A).)

“In ruling on [a motion to dismiss] the court must consider all matters relevant to a proper determination of the motion, including: (1) The court's file in the case and the declarations and supporting data submitted by the parties and, where applicable, the availability of the moving party and other essential parties for service of process; (2) The diligence in seeking to effect service of process; (3) The extent to which the parties engaged in any settlement negotiations or discussions; (4) The diligence of the parties in pursuing discovery or other pretrial proceedings, including any extraordinary relief sought by either party; (5) The nature and complexity of the case; (6) The law applicable to the case, including the pendency of other litigation under a common set of facts or determinative of the legal or factual issues in the case; (7) The nature of any extensions of time or other delay attributable to either party; (8) The condition of the court's calendar and the availability of an earlier trial date if the matter was ready for trial; (9) Whether the interests of justice are best served by dismissal or trial of the case; and (10) Any other fact or circumstance relevant to a fair determination of the issue.” (Cal. Rules of Court, rule 3.1342(e).)

Petitioner and Plaintiff Charleen Wignall-Ewing commenced this action on January 30, 2023, by filing a Civil Complaint against Bruce Miroglio, and Gene Armstead both in his individual capacity and in his capacity as Trustee of the John Scruggs 2014 trusts. Ms. Wignall-Ewing filed a First Amended Complaint (FAC) on April 3, 2023. On August 9, 2023, Mr. Armstead demurred to the FAC. The Court sustained the demurrer by Minute Order of

September 6, 2023. Therein, the Court found that “each of Plaintiff’s claims against Armstead arise out of alleged injuries she suffered in her capacity as beneficiary of the Subject Trusts. The Court further finds that Armstead’s alleged liability for those injuries arise exclusively from his role as Trustee of those trusts.” (See *id.* at p. 6.) Based on these findings and a review of the law, the Court ruled that “the provisions of the Probate Code control the parties and the subject matter of the claims asserted through the FAC by setting forth the applicable remedies and the proceedings to be followed. Under these provisions, the Court sitting in Probate has exclusive jurisdiction over proceedings involving the internal affairs of the Subject Trusts. [Citations.]” (*Ibid.*)

On September 20, 2023, Ms. Wignall-Ewing filed a Second Amended Complaint (SAC). Through the SAC, Ms. Wignall-Ewing asserted, for the first time, a claim for breach of trust, arising under the Probate Code, against Mr. Armstead. On January 22, 2024, Ms. Wignall-Ewing filed the operative Third Amended Complaint (TAC). The TAC asserted only the single cause of action for Breach of Trust, arising under the Probate Code, against Mr. Armstead in his capacity as Trustee, and a single cause of action for negligence against Mr. Miroglio.⁴

On November 1, 2024, Mr. Armstead filed his first Motion for Summary Judgment on the TAC (MSJ 1). Following hearing on March 14, 2025, the Court took MSJ 1 under submission. By Order After Hearing filed on March 21, 2025, the Court stated that “[d]uring oral argument, [counsel for Mr. Armstead] Mr. Queally argued, for the first time, that the Court lacked jurisdiction due to a failure, by Plaintiff, to comply with the Probate Code’s notice requirements. [¶] Ordinarily, the Court would not entertain arguments raised for the first time at hearing. However, because the argument implicates the Court’s jurisdiction to rule on the motion, the Court finds it appropriate to consider it, after affording the parties the opportunity to address the issue fully.” The Court then set a schedule for further briefing on the jurisdictional issue.

On April 3, 2025, Mr. Armstead timely filed a Supplemental Brief. Therein, Mr. Armstead noted that there was no proof in the Court’s files that any of the other beneficiaries to the Trust had been served with Summons and a copy of any of the Complaints in the action. Mr. Armstead argued that this failure constituted a denial of these beneficiaries’ due process rights, and deprived the Court of its jurisdiction to make any rulings in the matter. Ms. Wignall-Ewing did not file a Supplemental Brief.

On May 21, 2025, the Court issued an Order After Hearing on Mr. Armstead’s MSJ 1. The Court, again, found that “[t]he Probate Code governs Petitioner’s current claims against Respondent Eugene Armstead” and that “[t]he Court will treat the Complaint against Eugene Armstead as a Probate Petition subject to the rules of the Probate Code *which include notice requirements particular to Probate matters.*” (*Id.* at p. 1. Italics added.) The Court concluded that it “has jurisdiction over the claims against Respondent Eugene Armstead only after the notice requirements are met.” (*Id.* at p. 2.)

⁴ By Order of March 21, 2025, the Court granted Mr. Miroglio’s motion for summary judgment. Thus, Mr. Miroglio is no longer a party to the action.

On April 22, 2026, Mr. Armstead filed a second Motion for Summary Judgment on the TAC. Through her Opposition to that motion, Ms. Wignall-Ewing refers to the May 21, 2025, Order After Hearing. She then states, “Probate notice requirements are found in Probate Code sections 17201 and 17203. They require Wignall to state the names and addresses of each beneficiary entitled to notice in her Petition in order to commence the proceeding. Even though the court ruled that Probate notice requirements had not been met, Wignall did not amend her pleading to state the names of the interested parties. To this day, there is no pleading that identifies who the interested parties are in compliance with section 17201. According to the plain meaning of section 17201, this proceeding has not commenced.” (Opposition at 5:11-18.)

More than 42 months after the filing of the original Complaint, and more than 30 months after the filing of the operative TAC, there remains no proof of adequate service on the beneficiaries of the subject Trust.⁵ Ms. Wignall-Ewing was put on notice of her failure to properly serve the beneficiaries no later than 18 months ago, at the March 21, 2025, hearing on Mr. Armstead’s MSJ 1. Rather than correct the defect, she affirmatively raised the lack of proper service (and her related failure to identify all beneficiaries in the Petition) as a defense to Mr. Armstead’s second Motion for Summary Judgment, as described in the Court’s July 16, 2026, Minute Order.

Ms. Wignall-Ewing presents no valid explanation or justification, through her Memorandum of Points and Authorities re OSC Dismissal, for her continuing failure and refusal to put the action at issue by properly identifying and serving the beneficiaries. Her failure and refusal have left the Court without jurisdiction over the matter for far too long. (See *Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 [“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question”].)

Based on the foregoing, the Court orders the action against Gene Armstead DISMISSED WITHOUT PREJUDICE based on Ms. Wignall-Ewing’s failure to prosecute it. (See Code Civ. Proc., § 583.410, subd. (a).)

[2] DEFENDANT GENE ARMSTEAD’S MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING: Based on the concurrent ruling dismissing the action, Gene Armstead’s Motion for Summary Judgment is MOOT.

⁵ Through her Memorandum of Points and Authorities re OSC Dismissal, Ms. Wignall-Ewing cites to a Proof of Service she filed in the action on April 17, 2025. (See *id.* at 3:3-7.) That filing only evidences service of the *original* Complaint. At the time of said service, however, the *third amendment* thereto was the operative pleading. There remains no proof that any of the beneficiaries have ever been served with any operative pleading or with any notice of hearing thereon. (See Prob. Code § 17203, subd. (a)(2).)

[3] MOTION TO COMPEL FURTHER RESPONSES AND PRODUCTION OF DOCUMENTS TO REQUESTS FOR PRODUCTION, SET ONE AND SET TWO, AND FOR MONETARY SANCTIONS OF \$10,000.00

TENTATIVE RULING: Based on the concurrent ruling dismissing the action, Charleen Wignall-Ewing's Motion to Compel is MOOT.

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Global AG Properties USA LLC et al v. Fairwinds Estate

24CV001745

MOTION FOR TERMINATING SANCTIONS AGAINST FAIRWINDS ESTATE WINERY, LLC

TENTATIVE RULING: The motion is GRANTED. The Court orders the Clerk to STRIKE the Answer filed by Defendant Fairwinds Estate on November 18, 2024.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiffs Global AG Properties USA, LLC, Global AG Properties, II USA, LLC, and SPP Napa Vineyards, LLC move, pursuant to Code of Civil Procedures sections 2023.010, 2023.030, subdivision (d), 2031.320, subdivision (c), and 2030.300, subdivision (d), for the imposition of terminating sanctions against Defendant Fairwinds Estate Winery, LLC (erroneously sued as Fairwinds Estate) (Fairwinds) based on Fairwind's willful violation of the Court's order compelling Defendant to provide discovery responses.

Plaintiffs commenced the action against Fairwinds by filing the operative Complaint on October 4, 2024. On November 18, 2024, Fairwinds filed an Answer by which it generally denied the allegations of the Complaint and asserted a series of affirmative defenses. On July 1, 2025, Plaintiffs filed four motions seeking to compel Fairwinds to honor its obligations under the Civil Discovery Act: (1) a motion to deem admitted the genuineness of documents and matters specified in requests for admissions; (2) a motion to compel Fairwinds to provide responses to form interrogatories; and (3) a motion to compel Fairwinds to provide responses to special interrogatories; and (4) a motion to compel Fairwinds to provide responses to requests for production of documents. Fairwinds did not file anything by way of opposition to any of the motions.

By Minute Order of August 5, 2025, the Court granted the four discovery motions.